

HOWARD MARKEL

Howard Markel is a physician and writer known internationally for his work as a pediatrician, professor, and historian of medicine. Born in Detroit, Michigan, in 1960, he earned degrees in literature and medicine from the University of Michigan and took a PhD in the history of science, medicine, and technology at Johns Hopkins University. Markel began writing between the round-the-clock shifts of his medical residency and found that his work as a writer inspired his work as a doctor and vice versa. Markel's many books include *When Germs Travel: Six Major Epidemics That Have Invaded America since 1900 and the Fears They Have Unleashed* (2004) and *William and Sigmund: How the Brilliant Drs. Halsted and Freud Discovered Cocaine, Struggled to Break Free of Its Addiction Grip, and Changed the World* (2010). Markel was named a Centennial Historian of the City of New York in 1998 and became a member of the Institute of Medicine of the National Academy of Science in 2008. A frequent contributor to the *New York Times*, he teaches and practices medicine at the University of Michigan Medical School.

Mary Ellen's Story

In this essay Markel relates the story of Mary Ellen McCormack, an orphan who was neglected and routinely beaten by her adoptive mother in the 1870s. Strangely, it was the New York Society for the Prevention of Cruelty to Animals that came to Mary Ellen's rescue. Weaving together trial testimony and newspaper reports, Markel reveals why that was—and reminds us that this nineteenth-century legal case is still very relevant today. "Mary Ellen's Story" (editors' title) first appeared in the *New York Times* in 2009.

"Mamma has been in the habit of whipping and beating me almost every day," the little girl testified. "She used to whip me with a twisted whip—a rawhide. I have now on my head two black-and-blue marks which were made by Mamma with the whip, and a cut on the left side of my forehead which was made by a pair of scissors in Mamma's hand; she struck me with the scissors and cut me. . . . I never dared speak to anybody, because if I did I would get whipped."

If the words sound depressingly familiar, it is because they could have come from any number of recent news accounts—or, for that matter, popular

to care for her daughter and was forced to send her to the city orphanage on Blackwell's Island.

A few years later, Mary Ellen was adopted by a Manhattan couple, Thomas and Mary McCormack. But Thomas died soon after the adoption, and his widow married Francis Connolly. Unhappy and overburdened, the adoptive mother took to physically abusing Mary Ellen. Sometime in late 1873, the severely battered and neglected child attracted the attention of her neighbors. They complained to the Department of Public Charities and Correction, which administered the city's almshouse, workhouse, insane asylums, orphanages, jails and public hospitals. Even the hard-boiled investigator assigned to Mary Ellen's case, Etta Angell Wheeler, was shocked and became inspired to do something.

Frustrated by the lack of child-protection laws, Wheeler approached the ASPCA. It proved to be a shrewd move. Mary Ellen's plight captured the imagination of the society's founder, Henry Bergh, who saw the girl—like the horses he routinely saved from violent stable owners—as a vulnerable member of the animal kingdom needing the protection of the state. Bergh recruited a prominent lawyer, Elbridge Gerry (grandson of the politician who gave his name to gerrymandering), who took the case to the New York State Supreme Court. Applying a novel use of habeas corpus,¹ Gerry argued there was good reason to believe that Mary Ellen would be subjected to irreparable harm unless she was removed from her home.

Judge Abraham R. Lawrence ordered the child brought into the courtroom. Her heart-wrenching testimony was featured in the *New York Times* the next day, April 10, 1874, under the subheading "Inhuman Treatment of a Little Waif." "She is a bright little girl," the article said, "with features indicating unusual mental capacity, but with a careworn, stunted and prematurely old look. Her apparent condition of health, as well as her scanty wardrobe, indicated that no change of custody or condition could be much for the worse."

Ms. Connolly was charged and found guilty of several counts of assault and battery. Mary Ellen never returned to her adoptive home, but her temporary placement in a home for delinquent teenagers was not much of an improvement. In a lifesaving act of kindness, Etta Wheeler, her mother, and her sister volunteered to raise Mary Ellen in bucolic North Chili, New York, outside Rochester.

At twenty-four, Mary Ellen married Louis Schutt. The couple had two children of their own, along with three children of Schutt's from a previous marriage, and Mary Ellen passed on her good fortune by adopting an orphan

¹Latin for "you have the body," *habeas corpus* is a legal term for unlawful imprisonment.—Eds.



Mary Ellen McCormack

entertainment, like the . . . movie *Precious*, which depicts the emotional and sexual abuse of a Harlem girl.

In fact, though, the quotation is from the 1874 case of Mary Ellen McCormack, a self-possessed ten-year-old who lived on West 41st Street, in the Hell's Kitchen section of Manhattan. It was Mary Ellen who finally put a human face on child abuse—and prompted a reformers' crusade to prevent it and to protect its victims, an effort that continues to this day.

Tellingly, the case was brought by the American Society for the Prevention of Cruelty to Animals. In 1874, there were no laws protecting children from physical abuse from their parents. It was an era of "spare the rod and spoil the child," and parents routinely meted out painful and damaging punishment without comment or penalty.

Mary Ellen had been orphaned as a baby. Her father, Thomas Wilson, was a Union soldier who died in the Second Battle of Cold Harbor, in Virginia. Her mother, Frances, boarded the baby with a woman living on Mulberry Bend, on the Lower East Side, while working double shifts as a laundress at the St. Nicholas Hotel. This arrangement cost two dollars a week, consuming her entire widow's pension. When she lost her job, she could no longer afford

girl. By all accounts, she was a superb and caring mother. She died in 1956, at ninety-two.

Mary Ellen's case led Bergh, Gerry, and the philanthropist John D. Wright to found the New York Society for the Prevention of Cruelty to Children in December 1874. It was believed to be the first child protective agency in the world. In the years since, the society has helped rescue thousands of battered children, created shelters to care for them and, working with similar groups and agencies in cities across the nation, instituted laws that punish abusive parents.

Gone are the days when beasts of burden enjoyed more legal protection than children. In recent years, a broad spectrum of programs, diagnostic and reporting protocols, safe houses, and legal protections have been developed to protect physically or sexually abused children. But every day, at least three children die in the United States as a result of parental mistreatment. Many more remain out of sight and in harm's way. Mary Ellen's story reminds us of a simple equation: How much our society values its children can be measured by how well they are treated and protected. 12

For a reading quiz and annotated links to further readings on child abuse, visit bedfordstmartins.com/thebedfordreader.

Journal Writing

Markel writes in his conclusion that "every day, at least three children die in the United States as a result of parental mistreatment" (par. 12). How do you react to this statement? Why would any parent hurt a child? And why don't families, neighbors, or authority figures (such as teachers or doctors) step in to stop abuse? Explore your thoughts on these questions in your journal. (To take your journal writing further, see "From Journal to Essay" on the facing page.)

Questions on Meaning

1. Why, in 1874, would a child-abuse case have been brought forward by the American Society for the Prevention of Cruelty to Animals?
2. In paragraph 4 Markel comments, "It was an era of 'spare the rod and spoil the child.'" What does he mean?

3. Why does Markel ALLUDE to the 2009 movie *Precious*? What does the film have to do with a story about a legal case from more than a century ago?
4. What seems to be Markel's primary PURPOSE in this essay?
5. Where does Markel state his THESIS? Is any part of his main idea left unsaid?

Questions on Writing Strategy

1. Markel starts his story in the middle. Why do you suppose he opens with the trial rather than, say, the early years of Mary Ellen McCormack's life?
2. What POINT OF VIEW does Markel take as a NARRATOR? Why was his choice appropriate, given his subject?
3. Take a close look at the photograph on page 134. Why does Markel include it? What does it reveal about the abuse inflicted on the child?
4. "Mary Ellen's Story" originally appeared in the *New York Times*. What evidence in the text reveals that Markel was writing for an audience of New York City residents? How does he ensure that readers with no firsthand knowledge of the city can follow his ideas?
5. **OTHER METHODS** What CAUSE AND EFFECT relationship does Markel draw between the 1874 case of Mary Ellen McCormack and current child-protection laws?

Questions on Language

1. Why does Markel quote Mary Ellen McCormack's testimony from the trial?
2. Consult a dictionary if you need help defining the following: meted (par. 4); boarded, laundress (5); almshouse, workhouse (6); gerrymandering (7); waif (8); bucolic (9); philanthropist (11); spectrum, protocols (12).
3. How would you characterize Markel's TONE? How does it differ from the tone of the earlier *New York Times* article on the same subject that he quotes in paragraph 8?

Suggestions for Writing

1. **FROM JOURNAL TO ESSAY** Building on your journal entry (p. 136), compose an essay that examines one of the CAUSES AND EFFECTS of child abuse. If you have had some experience with abuse (as a counselor, a bystander, a victim, or an abuser) and you care to write about it, you might develop your THESIS based on your experience and observation; otherwise draw on information you have gleaned from the media and your reading, being sure to acknowledge any sources you use.
2. Research the history of Blackwell's Island in New York or a similar public institution in the late nineteenth century, such as the "almshouse[s], workhouse[s], insane asylums, orphanages, jails and public hospitals" Markel mentions in paragraph 6. What ASSUMPTIONS did reformers make about poverty, personal responsibility, and charity? Was there any practical difference between a workhouse and a jail, for instance, or between an almshouse and a hospital? To what extent did charitable organizations exist to punish, rather than to help, those who sought assistance? Do such assumptions still hold?